BY ORDER OF THE SUPERINTENDENT

HQ UNITED STATES AIR FORCE ACADEMY INSTRUCTION 51-902

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Law

FUNDRAISING AND ON-BASE SOLICITATION

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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This instruction implements Air Force Policy Directive (AFPD) 51-9, *Civil Law for Individuals*, and establishes procedures to obtain approval for fundraising and on-base commercial solicitation. It applies to all individuals and organizations that want to engage in commercial solicitation or fundraising on United States Air Force Academy (USAFA) property, except individuals or companies requesting permission to sell products or services in the lobby of the Base Exchange or at other Army & AF Exchange Service (AAFES) facilities. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using AF Form 847, *Recommendation for Change of Publication.* Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with Air Force Manual (AFMAN) 33-363, *Management of Records,* and are disposed of in accordance with the AFRIMS Records Disposition Schedule (RDS) located at **https://www.my.af.mil/gcss-af61a/afrims/afrims/rims.cfm**. See Attachment 1 for listing of references.

SUMMARY OF CHANGES

This document is substantially revised and must be completely reviewed.

1. Commercial Solicitation. Commercial solicitation includes any attempt to conduct private business on USAFA property. This includes, but is not limited to, selling items such as milk delivery, insurance, cosmetics, real estate, home improvements, kitchenware, etc. Also included are free promotions by businesses or their agents (such as Welcome Wagon).

1.1. No person has authority to enter the USAFA and transact personal commercial solicitation as a matter of right. Commercial solicitation on USAFA will be permitted only if the solicitor complies with Department of Defense (DoD) and USAFA instructions, is duly licensed under the applicable Federal and State law, and has a specific appointment with the individual concerned.

1.2. All commercial solicitations will be by specific invitation only, and may be conducted only in family housing (excluding dormitories), the Community Center, or Arnold Hall (when cadets are the inviters). Appointments with DoD personnel will not be held while the person is at work or in "on-duty" status. DoD personnel who are at work or in "on-duty" status will not be contacted, either by telephone or in person, for the purpose of securing an appointment.

1.3. Financial presentations, including financial planning and home buying seminars, are not permitted on USAFA, except for educational presentations conducted by the Airman and Family Readiness Center or other agency tasked with such education. Under no circumstances shall educational presentations be conducted by commercial agents, including representatives of loan, financial, insurance, or investment companies.

1.4. The Commander, 10th Air Base Wing (10 ABW/CC), may revoke permission to conduct business on the USAFA for failure to abide by these rules.

2. Fundraising. Fundraising includes any organized method of collecting funds or material for recognized charities, nonprofit organizations, social activities, or unit welfare funds. The Combined Federal Campaign (CFC) and the Air Force Assistance Fund (AFAF) Campaign are the primary means of charitable fundraising on Air Force installations. As a general rule, no other fundraising activities will be authorized during those campaigns.

2.1. The approval authority for fundraisers is delegated to the Commander, 10th Force Support Squadron (10 FSS/CC), except that requests for fundraisers during the CFC or AFAF campaigns must be approved by 10 ABW/CC.

2.2. Private organizations are composed of individuals acting exclusively outside the scope of any official capacity. They operate on DoD installations with the written consent of the installation commander. Unofficial activities and organizations, such as unit coffee funds, flower funds, and other small, usually interoffice activities, do not require approval from the installation commander as long as they do not have assets that exceed a monthly average of $1,000.00 over a 3-month period.

2.3. Both private organizations and unofficial activities and organizations shall be self-sustaining, primarily through dues, contributions, service charges, fees, and special assessments of their members. Occasional fundraisers may be permitted, but ordinarily no more than two fundraisers per calendar year will be approved.

2.4. Fundraising activities will not compete with any AAFES or nonappropriated fund instrumentality. Fundraising activities will not be conducted in the workplace. DoD personnel will not engage in fundraising activities while at work or in "on-duty" status.

2.5. Requests for fundraisers shall be submitted on AF Form 1768, *Staff Summary Sheet*, to Resource Management Flight (10 FSS/FSR) at least 4 weeks in advance of the event. The staff summary sheet shall provide for coordination by 10 FSS/FSR, AAFES, Staff Judge

Advocate (HQ USAFA/JA), and approval by 10 FSS/CC. If the event will be held during the CFC or AFAF campaigns, 10 ABW/CC will be the approval authority. Some fundraising activities will require insurance coverage. In those cases, proof of insurance must be submitted with the request.

2.5.1. The first paragraph of the staff summary sheet shall set out in detail where and when the fundraiser will be held, the type of fundraiser, its purpose, and how the funds will be used.

2.5.2. The second paragraph of the staff summary sheet shall indicate the number of fundraisers the requester has held during the calendar year. No more than two fundraisers per requestor will ordinarily be approved each calendar year.

2.5.3. 10 FSS/FSR will return requests that fail to comply with these requirements to the requestor for correction.

2.6. 10 ABW/CC may withdraw permission to operate or conduct fundraisers on the USAFA for failure to comply with this instruction.

3. Prescribed and Adopted Forms.

3.1. Prescribed Forms. No forms are prescribed.

3.2. Adopted Forms.

AF Form 847, *Recommendation for Change of Publication.*

RONALD J. WILLIAMS, Colonel, USAF
Staff Judge Advocate

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

DODI 1000.15, *Private Organizations on DoD Installations*

DODD 1344.07, *Personal Commercial Solicitation on DoD Installation*

DODD 5035.1, *Combined Federal Campaign Fund-Raising Within the Department of Defense*

DODD 5500.7-R, *Joint Ethics Regulation*

AFI 34-223, *Private Organization Program*

AFI 36-3101, *Fundraising Within the Air Force*

AFPD51-9, *Civil Law for Individuals*

Terms

AAFES—Army & AF Exchange Service

AFAF—Air Force Assistance Fund

CFC—Combined Federal Campaign

USAFA—United States Air Force Academy